Council of the European Union
General Secretariat
Directorate-General Communication and Information - COMM
The Director-General

Brussels, 5 June 2025
SGS 25/1778

Mr Alberto Alemanno
Email: ask+request-15542-6950bfa4@asktheeu.org

Subject: Your Confirmatory Application 11/c/01/25

Dear Mr Alemanno,

Please find enclosed the reply from the Council to the confirmatory application you introduced on 16 April 2025 and which was registered by our service on 22 April 2025.

If you wish to challenge this decision, you may do so by instituting proceedings against the Council before the General Court of the European Union[1] or by making a complaint to the European Ombudsman[2].

Yours sincerely,

Preben Aamann
Director-General

Enclosure

1 For deadlines and other procedural requirements concerning the institution of proceedings at the General Court, please refer to the following page: http://curia.europa.eu/jcms/jcms/Jo2_7040/en/

2 Any complaint to the Ombudsman must be made within two years of receiving the institution's final position on the matter. For more information, please refer to the Ombudsman's website.

ANNEX

REPLY TO CONFIRMATORY APPLICATION 11/c/01/25
made by email on 16 April 2025 and registered on 22 April 2025

A. INTRODUCTION

The Council has considered this confirmatory application under Regulation (EC) No 1049/2001 of the European Parliament and of the Council of 30 May 2001 regarding public access to European Parliament, Council and Commission documents (hereinafter referred to as "Regulation (EC) No 1049/2001") and Annex II to the Council's Rules of Procedure and has come to the following conclusion:

1. On 12 February 2025, the applicant submitted a request for public access to:

    a. the Article 255 panel's opinions regarding the two judicial candidates nominated for the General Court and the Court of Justice by the Portuguese government in 2023, 2024 and 2025, as well as any minutes, audio, and video recordings pertaining to the candidates' hearings;

    b. all communications and exchanges between the Portuguese government and the Council and between the Article 255 panel and the Council, before and after the Article 255 panel's interviews, including minutes and exchanges among the members of the Council, the Representatives of the Governments of the Member States, and the Article 255 panel in connection to the panel's decisions concerning the two Portuguese candidates;

    c. the national file of the candidates considered by the Portuguese Government to become members of the General Court and the Court of Justice, containing inter alia the CV of the candidates, their public hearing before the national parliament (any minutes, audio, and video recordings pertaining to the candidates' hearings), the vote cast on their nomination and any other documents regarding the national selection process and in possession of the Council.

2. On 31 March 2025, the General Secretariat of the Council (hereinafter "GSC") informed the applicant that it had identified the following documents as responsive to the three points of the request:

    a. As regards the first point:

        i. The opinions of the panel provided for in Article 255 TFEU on the two candidates proposed by Portugal in 2024 for the post of Judge of the Court of Justice of the European Union.

    b. As regards the second point:

        i. the letters of 15 July 2024 and 12 December 2024 from the Permanent Representative of Portugal to the European Union (EU) to the Secretary-General of the Council proposing the two candidates for the post of Judge of the Court of Justice;

        ii. the letter, in Portuguese, of 25 September 2024 from the Permanent Representative of Portugal to the EU to the Secretary-General of the Council, requesting that the CRGMS to be held on 2 October 2024 consider the Portuguese candidacy submitted on 15 July 2024. This letter was transmitted to the Representatives of the Governments of the Member States by the secretariat of the CRGMS by means of document ST 13861/24;

        iii. the minutes of the CRGMS held on 2 October 2024 (ST 14108/1/24 REV 1 and ST 14108/24 ADD 1);

        iv. the information note from the secretariat of the CRGMS to the Representatives of the Governments of the Member States (ST 13358/24 of 13 September 2024 and ST 13358/1/24 REV 1 of 26 September 2024); and

        v. The note from the secretariat of the CRGMS to the CRGMS (ST 13680/24 of 23 September 2024 and ST 13680/1/24 REV 1 of 25 September 2024);

d. As regards the third point:

i. The CVs of the two candidates proposed by Portugal in 2024 for the post of Judge of the Court of Justice of the European Union; and

ii. The letters of the Portuguese government to the President of the panel of 12 July 2024 and 6 December 2024, describing the national selection procedure and the reasons why the respective candidacies were retained.

3. As regards the **two opinions of the panel**, the GSC rejected the applicant's request for full public access on the basis of the exceptions relating to the protection of the public interest as regards privacy and the integrity of the individual (Article 4(1)(b) of Regulation (EC) No 1049/2001), the protection of the decision-making process (Article 4(3) of Regulation (EC) No 1049/2001) and the protection of commercial interests (Article 4(2) first indent of Regulation (EC) No 1049/2001). However, the GSC provided partial access to those parts of the panel's opinions which were not covered by the above-mentioned exceptions.

4. Regarding the other documents identified by the GSC as responsive to the request, the GSC:

a. Granted full access to the following documents:

i. 14108/1/24 REV 1;

ii. ST 13358/24 of 13 September 2024;

iii. ST 13680/24 of 23 September 2024 (which had already been rendered public following an access to documents request);

b. Granted partial access to the following documents:

i. the letters of 15 July 2024 and 12 December 2024;

ii. the letter of 25 September 2024 (to which the applicant had already been granted partial access (in its English version) following the applicants request with reference 24/2569);

iii. ST 13358/1/24 REV 1 of 26 September 2024;

iv. ST 13680/1/24 REV 1 of 25 September 2024;

v. the letters of 12 July 2024 and 6 December 2024;

d. Refused access to the following documents:

i. 14108/24 ADD 1;

ii. The CVs of the candidates.

5. On 16 April 2025, the applicant submitted a confirmatory application asking the Council to reconsider its position regarding "*the Article 255 Panel's opinions regarding the two judicial candidates nominated for the CJEU by the Portuguese government in 2023, 2024 and 2025, as well as any minutes, audio, and video recordings pertaining to the candidates' hearings*". The Council notes that the applicant has focused in his confirmatory application on the reply of the General Secretariat of the Council regarding the documents referred to in the first point of the applicant's initial request (and not those referred to in the second and the third points).

6. The applicant contends that:

A. The candidates' privacy interest is not protected by non-disclosure of the panel's opinions. In particular, the applicant points out that:

(i) Even if all the information contained in the opinions qualifies as personal data, it is necessary to disclose the opinions and hence all the personal data contained therein, in the public interest, in accordance with Article 9 of Regulation (EU) 2018/1725. Regarding the necessity of the transfer of that personal data, it is submitted that the public interest arises from "*an unprecedented, EU-wide and intense public coverage and political contestation around the two specific 255 opinions"*. In addition, it is argued that because the designation of the candidates by the Portuguese government was public and announced in the media, "*their non-confirmation automatically suggested that something went wrong*". Therefore, non-disclosure would only protect why and not who has received an unfavourable opinion.

(ii) The absence of disclosure of the opinions allegedly causes harm to the reputation of the candidates and prejudices their legitimate interests.

(iv) The Council failed to show to what extent and how the disclosure of the opinions would specifically and effectively undermine the right to privacy of the candidates even though the opinions "*were compiled in the context of professional life and in the public interest*". The Council did not verify whether the risk of the protected interest of the candidates being undermined was reasonably foreseeable and not purely hypothetical.

B. Disclosure of the panel's opinions would not jeopardize the candidate's commercial interests. In particular, the applicant contends that:

(i) The damage to the reputation of the candidates stems from withholding the opinions rather than releasing them. First, while the reasons leading to an unfavourable opinion remain confidential, both the identity of the candidate and the outcome of the panel's opinion are publicly known.

(ii) Second, by preventing the public from knowing for what reasons a particular candidate has failed to receive a favourable assessment by the panel, "*the actual confidentiality policy is prone to speculation, chattering, and manipulation*".

(iii) Regarding the Council's argument that publicity would discourage further candidatures for judicial jobs, the applicant contends that the Council has not proven the existence of a reasonably foreseeable and not purely hypothetical risk. Moreover, due to the limited confidentiality ensured by the current system, some risk of chilling effect already exists.

C. Reference to the European Ombudsman decision in case 1955/2017/THH does not carry legal value and cannot be used in support of the Council's refusal to grant access. In particular, the conclusion in that decision was reached in a case where the applicant had asked for access to all opinions delivered by the panel since its establishment, and not to two specific opinions which have become the object of "*intense public scrutiny*", like in the case at hand. It is also argued that in any case, "*while the Ombudsman concluded that the rejection did not represent maladministration, it "nonetheless welcomed the public interest served in submitting the complaint as it provided an opportunity for some independent scrutiny of a matter of significant importance to EU citizens*".

7. The Council has reassessed, in full consideration of the principle of transparency underlying Regulation (EC) No 1049/2001, and in the light of the applicant's comments, whether public access can be provided to the requested documents and has come to the conclusions set out below.

B. THE CONTEXT

8. According to Article 255, first paragraph, of the Treaty on the Functioning of the European Union (hereinafter "TFEU"), "[a] *panel shall be set up in order to give an opinion on candidates' suitability to perform the duties of Judge and Advocate-General of the Court of Justice and the General Court* (…)".

9. The panel provided for in Article 255 TFEU (hereinafter "the panel") - which is composed of seven persons chosen among former members of the Court of Justice of the European Union (hereinafter "CJEU") and the General Court, members of national supreme courts and lawyers of recognised competence - provides its opinions to the intergovernmental conference that, according to Articles 253 and 254 TFEU, appoints the Judges and Advocates-General of the CJEU and the General Court by common accord.

10. The panel operates according to operating rules that have been laid down by Council Decision 2010/124/EU of 25 February 2010 (OJ L 50, 27.02.2010, p. 18-19), in line with Article 255, second paragraph, TFEU. The operating rules establish a principle of confidentiality of the activity of the panel and one of limited circulation of the relevant panel documents (candidacies submitted to the panel and panel's opinions):

    i. According to point five of the rules, "*the deliberations of the panel shall take place* in camera";

    ii. Point seven makes clear that "*Except where a proposal relates to the reappointment of a Judge or Advocate-General, the panel shall hear the candidate; the hearing shall take place in private"*;

    iii. Point six provides that "*As soon as a Government of a Member State proposes a candidate, the General Secretariat of the Council shall send that proposal to the President of the panel*";

v. Point eight states that the reasons for the opinion given by the panel shall be stated and that "*the statement of reasons shall set out the principal grounds on which the panel's opinion is based*". It also determines that "*The panel's opinion shall be forwarded to the Representatives of the Governments of the Member States*". Moreover, at the request of the Presidency, "*the President of the panel shall present that opinion to the Representatives of the Governments of the Member States' meeting within the Council*".

11. The above provisions rule out that the assessments conducted by the panel are carried out in public or addressed to the public; on the contrary, they make clear that the panel's opinions are intended exclusively for the Member State governments in the context of the appointment procedure carried out by the intergovernmental conference.

12. Consequently, the panel's opinions are not proactively made accessible to the public. However, the Council stresses that the panel has taken significant steps to make the public at large more acquainted with its activities. In particular, its activity reports provide an overall view of the work carried out and a better understanding of its procedures. Those reports contain exhaustive statistical data from the period of reference on the number of panel meetings held and the time taken to assess candidates, the number of candidates assessed, and the nature of the opinions delivered, whether favourable or unfavourable, as well as the outcome of the opinions. They further elaborate *in extenso* on the procedures followed for assessing candidates proposed for renewal of their term of office or for a first term of office, the comprehensive information required of the governments and the candidates, and the criteria used for the assessment of the candidates' suitability. The panel's reports are also directly accessible on the panel's website, but also from the Council's public register of documents and on the website of the CJEU[1].

C. THE REQUESTED DOCUMENTS

13. First, even if it is clear from its reply to the initial application, the Council confirms that no minutes and no recordings, either audio or video, pertaining to the hearings of the two candidates concerned exist or have existed. In fact, no recordings of the hearings performed by the panel, either audio or video, are being produced to start with. In this regard, it should be recalled that pursuant to Article 2(3) of Regulation (EC) No 1049/2001, public access to documents is limited to "*documents held by an institution, that is to say, documents drawn up or received by it and in its possession*". By virtue of the presumption of legality attaching to EU acts, it would be incumbent on the applicant to rebut the Council's statement that it does not hold any such

[1] See all reports published so far here: https://comite255.europa.eu/en/work.

documents by relevant and consistent evidence[2]. In addition, the Council observes that it has no obligation to create a document which it has been asked to grant access to, but which does not exist[3].

14. Second, point four of the panel's operating rules stipulates that "*The General Secretariat of the Council shall be responsible for the panel's secretariat. It shall provide the administrative support necessary for the working of the panel, including the translation of documents*".

15. It follows from the functional link thus established between the GSC and the secretariat of the panel that the opinions issued on the candidates proposed to perform the duties of Judge and Advocate-General are prepared and drawn up by the members of that panel, with material assistance from the GSC. The opinions are subsequently forwarded by the authorised officials to the governments of the Member States; for the purposes of such transmission, therefore, the GSC holds the opinions from the panel, even though it is not the final recipient of those opinions.

16. It results from the above that the requested documents are held by the GSC in execution of the tasks of administrative support to the panel entrusted to it by the Council Decision 2010/124/EU, and therefore falling within the institution's sphere of responsibility. As a consequence, the Council considers that the applicant's request falls within the scope of application of Regulation (EC) No 1049/2001.

17. The requested documents contain the opinions of the panel on the suitability of the two candidates proposed by Portugal to perform the duties of Judge of the CJEU delivered in 2024 and 2025. As explained in the activity reports of the panel, the assessment of the candidates' suitability is carried out on the basis of six considerations: the candidates' legal capabilities; their professional experience; their ability to perform the duties of a Judge; their language skills; their ability to work as part of a team in an international environment in which several legal systems are represented; and whether their independence, impartiality, probity and integrity are beyond doubt.

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[2] See judgement of the General Court of 14 May 2025 in case T-36/23, Stevi and The New York Times v Commission, EU:T:2025:483, paragraph 48; judgment of the General Court of 23 April 2018 in case T-468/16, *Verein Deutsche Sprache v Commission*, EU:T:2018:207, paragraph 35, and the case-law cited (judgment confirmed in the Order of the Court of Justice of 30 January 2019 in appeal case C-440/18P, *Verein Deutsche Sprache v Commission*, EU:C:2019:77, paragraph 14, and the case-law cited); judgment of the General Court of 25 September 2018 in joined cases T-639/15 to T-666/15 and T-94/16, *Psara et al. v European Parliament*, EU:T:2018:602, paragraph 33, and the case law cited.

[3] See judgment of the Court of Justice of 2 October 2014 in case C-127/13 P, *Strack v Commission*, EU:C:2014:2250, paragraph 46.

18. The two opinions concern candidacies for a first term of office. The structure of those opinions and the type of information contained therein is common for all opinions on candidacies for a first term of office. In particular, in their first section, those opinions contain some introductory paragraphs describing the main chronological and procedural milestones of the application submitted by the Member State concerned, in this case Portugal, to the GSC. Reference is also made to the communications exchanged between, on the one hand, the permanent representation of Portugal and the candidates themselves, and, on the other hand, the secretariat of the panel in preparation of the panel's hearing. Second, the documents provide a short description of the mandate of the panel and of the requirements set up by the TFEU for the appointment to the post of Judge of the CJEU. The third section of each document contains the assessment of the candidate on the basis of the six considerations identified by the panel as relevant in light of the respective provisions of the Treaties[4], as referred to above. For each of those considerations, the opinions include an analytical assessment of the elements resulting from the dossiers submitted in support of the candidacies, as well as the elements resulting from the hearings of the candidates. The elements of the candidate's dossier include a detailed CV, a letter explaining the reasons for applying, the text of one to three recent publications of which the candidate is the author, and a presentation of one to three complex legal cases which the candidate has handled in their professional practice. In addition, the government concerned is requested to provide in writing the essential reasons which led it to propose the candidate and any information on the national procedure that led to the candidate being selected, if there was one. In light of the results of the analytical assessment of all those elements, each of the two documents finally reports the global analysis of the respective candidacy and the conclusion of the panel on the candidate's suitability to perform the duties of Judge of the CJEU.

[4] See section III of the Seventh Activity Report of the panel, the latest published so far, accessible via the link provided in the first footnote.

D. ASSESSMENT OF THE REQUESTED DOCUMENTS IN VIEW OF THE APPLICABLE EXCEPTIONS

19. The Council considers that the requested documents fall within the remit of the exceptions relating to the protection of the public interest as regards privacy and the integrity of the individual (Article 4(1)(b) of Regulation (EC) No 1049/2001), the protection of the decision-making process (Article 4(3) of Regulation (EC) No 1049/2001) and the protection of commercial interests (Article 4(2) first indent of Regulation (EC) No 1049/2001). The Council will analyse the various exceptions in this order. In addition, the Council will address the statements made by the applicant in relation to the relevance of the decision of the European Ombudsman in case 1955/2017/THH to the case at hand.

1. The protection of the privacy and integrity of the individuals concerned

20. The Council considers that the requested opinions contain for most of their parts personal data pertaining to the two candidates to whom they refer[5]. In particular, the Council considers that the notion of personal data manifestly covers both the factual elements concerning the candidates' professional experience as well as the qualifications, and the panel's assessment of the candidates' competences.

21. According to Article 3(1) of Regulation (EU) No 2018/1725 (OJ L 295, 21.11.2018, p. 39-98) (hereinafter "Regulation No 2018/1725"), personal data is defined as "*any information relating to an identified or identifiable natural person*". Moreover, the CJEU has ruled that professional data or information provided as part of a professional activity must also be characterised as personal data[6]; it has pointed out that objection or the agreement to disclosure is not a constituent part of the concept[7]; it has further stressed that the fact that certain information has already been made public does not preclude its characterisation as personal data[8]; finally, surnames and forenames, even alone, qualify as personal data[9].

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5 The parts of the opinions which do not contain personal data, and which mainly provide a description of the procedure followed by the panel, have been released in the framework of the partial access to the requested documents.

6 Judgment in *Commission v Bavarian Lager*, C-28/08, ECLI:EU:C:2010:378, paragraphs 66 to 70.

7 Judgment in *ClientEarth et al. v European Food Safety Authority*, C-615/13 P, ECLI:EC:C:2015:489, paragraph 33.

8 Judgment in *Satakunnan and Satamedia*, C-73/07, ECLI:EU:C:2008:727, paragraphs 48 and 49.

9 Judgment in *Commission v Bavarian Lager*, C-28/08 P, ECLI:EU:C:2010:378, paragraph 68.

22. In light of the above, the Council considers that the refused parts of the requested documents contain personal data and therefore fall within the remit of the exception provided for in Article 4(1)(b) of Regulation (EC) No 1049/2001.

23. According to established case law, where an applicant seeks to obtain access to a document that includes personal data within the meaning of Article 3(1) of Regulation (EU) 2018/1725, the provisions of that Regulation become applicable in their entirety[10]. More specifically, pursuant to Article 9 of Regulation (EU) 2018/1725, "*personal data shall only be transmitted to recipients established in the Union other than Union institutions and bodies if:*

[…]

(b) the recipient establishes that it is necessary to have the data transmitted for a specific purpose in the public interest and the controller, where there is any reason to assume that the data subject's legitimate interests might be prejudiced, establishes that it is proportionate to transmit the personal data for that specific purpose after having demonstrably weighed the various competing interests.

[…]

3. Union institutions and bodies shall reconcile the right to the protection of personal data with the right of access to documents in accordance with Union law.".

It follows from that provision that it is up to the applicant to show whether the transfer of the requested personal data is necessary – that is to say, whether it is the most appropriate measure to achieve the objective pursued by the applicant and if it is proportionate to that objective. However, such a disclosure should not prejudice disproportionally the legitimate interests of the individual or individuals concerned[11].

[10] Ibidem, paragraph 63.

[11] Judgment in *Izuzquiza et al v European Parliament*, T-375/22, ECLI: EU:T:2024:296, paragraphs 27 and 28.

The necessity and proportionality of the transfer

24. The applicant argues that making the content of the opinions publicly available is in the public interest[12]. Notably, the applicant argues that "*the public interest arises from – and is linked to – the public debate prompted by unprecedented, EU-wide and intense public coverage and political contestation around the two specific 255 opinions of candidates as witnessed in EU media, national media, and specialised media*". The applicant asserts that because the designation of the candidates by the Portuguese government was public and announced in the media, "*their non-confirmation automatically suggested that something went wrong*". The applicant concludes that the non-disclosure of the opinions would therefore only protect why and not who has received an unfavourable opinion.

25. In this regard, the Council finds necessary to note from the outset that the operating rules of the panel, set out in Council Decision 2010/124/EU, provide for confidentiality of the activity of the panel and for limited circulation of the panel's opinions, as explained above. It is also further recalled that according to those rules, the panel's opinions are exclusively intended for Member States governments. Therefore, the current legal framework excludes that the panel's opinions are publicly disclosed and that a public debate takes place in relation to them. If any discussion in the public space takes place, as in the present case such a discussion of academic nature has taken place in relation to one of the opinions requested, this can be possible because the rules on circulation of the opinions are not respected and an opinion is leaked. The fact that such a discussion takes place is not a justification for asking the Council to jeopardize the confidentiality of the opinions.

26. In addition, the Council notes that it is the choice of the governments whether to make public or not the name of their candidates for the post of Judge or Advocate-General at the CJEU. If the name of a candidate has been made public at national level, this is not a reason either for the Council to disclose the panel's opinion on that candidate in breach of the rules referred to above which provide for protection of both the identity of the candidate and the assessment of the candidacy. Finally, the "non-confirmation" to which the applicant refers may result from different reasons and it is ultimately a decision of the intergovernmental conference.

[12] See confirmatory application.

27. More specifically concerning the necessity to transfer in the public interest the personal data contained in the two opinions requested, it is to be noted that the applicant, in his confirmatory application, essentially relies on general arguments in favour of transparency. While the arguments in favour of transparency are a legitimate objective that the Council is carefully considering, the Council does not consider that the applicant's arguments are sufficient to establish the necessity of transferring the requested personal data, in as much as he has not demonstrated why such transfer would be the most appropriate measure to achieve the objective pursued, nor that the transfer is proportionate to that objective, as required by the case-law[13].

28. It first needs to be reminded that the automatic prevalence of the principle of transparency over data protection has been expressly ruled out by the Court[14]. Indeed, Regulation (EC) No 1049/2001 only provides a right of public access to the extent that none of the exceptions provided for in that Regulation applies. While transparency is indeed essential for the democratic functioning of the EU, the right to access documents under Regulation (EC) No 1049/2001 is subject to limitations that, among others, safeguard personal data.

29. As regards the objective to ensure the public trust in the process for the appointment of the members of the EU judicature, the Council stresses that this is exactly the objective that led to the establishment of the panel in the first place and has inspired the panel's operating rules, which provide for the confidentiality of its activities.

30. In that regard, the Council further stresses that if transparency is crucial to allow citizens to hold accountable the political decision-makers and therefore to strengthen the democratic legitimacy of the EU institutions that are representative in nature, it plays a very different role in relation to the EU judiciary. The legitimacy of the Judges and Advocates-General is first and foremost assured by their independence, objectivity and professional competence, not by the power of the public opinion. It is not for members of the public to assess the suitability of candidates to the post of Judge or Advocate-General. In this context, the disclosure of the personal data requested by the applicant would, for the reasons that will be set out in section D.2 below, risk compromising the effective selection of suitable candidates to the post of Judges and Advocates-General and would therefore undermine, rather than pursue, the objective of ensuring the public's trust in the selection process and in the EU courts.

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13 See paragraph 23 above.

14 Judgment in *ClientEarth et al v. European Food Safety Authority*, C-615/13 P, EU:C:2015:489, paragraph 51.

31. Concerning the need to inform the public of its decision-making process, the panel already publishes detailed reports of its activities (see point 12 above), which provide an accurate account of its working methods and of the criteria for the assessment of the candidates. The Council considers that this information suffices to reassure the public on the fairness of the selection procedure that guarantees that the best candidates will be retained. It appears that the applicant has not taken this circumstance into account and has failed to show why the significant transfer of personal data that its application requires would be the only appropriate measure to achieve the objective pursued.

The prejudice to legitimate interests of the candidates

32. The Council considers that the disclosure of the requested personal data would inevitably harm the reputation of the candidates, and thus prejudice their legitimate interests.

33. The demanding professional requirements associated with the post of Judge or Advocate-General at the EU courts usually attract individuals of a particularly high seniority and who often hold prominent positions, both at national and EU level, such as Judges in the highest courts or renowned professors. The reputation of individuals in such positions would inevitably suffer a greater damage should unfavourable opinions concerning them be made public. Such a reputational damage could even have an effect on their potential career prospects, both at national and international level, even if the opinion of the panel is on the suitability of the candidate to perform the functions of a Judge or Advocate-General in the CJEU or the General Court. Even in the case of favourable opinions, the assessment may contain remarks, observations or point to certain less solid elements in the candidates' qualifications or profiles.

34. In this respect, it is to be reminded that the assessment considerations identified by the panel in its activity reports are broad and go well beyond the knowledge of EU law. Thus, the legal capabilities of the candidates for a first term of office are assessed on the basis of the written files of the candidates, as well as on the basis of the replies they provide to the panel in the hearing. As specified in the activity reports of the panel[15], the questions asked at the hearing serve, inter alia, to "*assess candidates' analytical abilities and capacity for reasoning with regard to the conditions and mechanisms for applying the law, particularly as regards the application of EU law*". From this it follows that the disclosure of any remarks identifying candidates' weaknesses in relation to their analytical abilities and capacity for reasoning with regard to the conditions and mechanisms for applying the law may harm the reputation of the candidates.

[15] See section II. 3.2. "Hearing" of the Seventh activity report of the panel.

35. In light of these considerations, the Council deems that the disclosure of the requested personal data would cause prejudice to the legitimate interests of the candidates and that, on balance, those interests prevail over the objectives pursued by the applicant. Contrary to what the applicant argues in its confirmatory application, the Council considers that it has sufficiently demonstrated by the explanations above that disclosure of the opinions would specifically and actually undermine the right to privacy of the individuals concerned, and that the risk of this interest being undermined is reasonably foreseeable and not purely hypothetical.

36. Furthermore, the argument raised by the applicant according to which disclosure of the requested documents could not harm the reputation of the candidates and prejudice their legitimate interests in so far as the content of the opinions "*have - amid unprecedented media coverage - previously been made available to the public*", must be refused. The Court has already found that the fact that a document had already been leaked, cannot, in itself, have any bearing on the possibility for the institution to rely on one of the exceptions provided for under Regulation (EC) No 1049/2001[16].

37. Therefore, the Council considers that access to the requested opinions should be refused on the basis of the exception relating to the protection of the public interest as regards privacy and the integrity of the individual, provided for in Article 4 (1) (b) of Regulation (EC) No 1049/2001.

2. The protection of the decision-making process

38. The Council also considers that disclosure of the requested documents would seriously undermine the decision-making process leading to the appointment of Judges. Even though the applicant does not object to the applicability of the exception referred to in Article 4(3) of Regulation (EC) No 1049/2001 to the case at hand, for completeness the Council finds necessary to confirm that a full disclosure of the two requested documents should not be granted on the basis of that exception as well.

39. To start with, the publication of the panel's opinions would affect the confidentiality of the procedure for assessing the suitability of the candidates. In that regard, it has to be recalled that the principle of secrecy regarding assessment bodies' proceedings is widely acknowledged in EU law and finds its justification in the need to guarantee the independence of the assessment bodies and the objectivity of their proceedings, by protecting them from all external interference and pressures.[17] This rationale applies, of course, all the more to the panel provided for in Article 255

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16 See Judgment of the General Court of 21 April 2021 in *Pech v Council*, T-252/19, EU:T:2021:203.

17 See for instance in the domain of selection of personnel and Staff Regulations, Judgment in *Gonzalo de Mendoza Asensi v European Commission*, Case F 127/11, ECLI:EU:F:2014:14, paragraph 93.

TFEU.

40. In the case of the panel, the principle of confidentiality has been expressly enshrined in the panel's operating rules, which set out a number of specific provisions concerning the arrangements for holding the panel's meetings and a specific system of circulation of and access to documents (see point 10 above). Needless to say, those rules have to be coordinated with the provisions of Regulation (EC) No 1049/2001.

41. According to well-established case law[18], when potential conflict exists between the provisions of Regulation (EC) No 1049/2001 and a specific set of rules regulating the circulation of and access to documents in the framework of a specific procedure, the conflict has to be resolved by interpreting the exception provided for in Regulation (EC) No 1049/2001 in line with those rules. This ensures that the procedure to which those rules apply operates correctly and guarantees that its objectives are not jeopardised.

42. Typically, this coordination is carried out by the recognition of a general presumption. Such a presumption is based on the fact that access to a document involved in the relevant procedure would be incompatible with the proper conduct of that procedure and aims at ensuring the integrity of that procedure by limiting the intervention of third parties.

43. In the present situation, there is no doubt that the disclosure of the requested documents would undermine the conduct of the selection procedure, and notably its confidential nature, as expressly provided for in the panel's operating rules. It follows that, in line with the case law of the EU Courts[19], the documents are covered by a general presumption according to which the disclosure of the panel's opinions would, as a matter of principle, seriously undermine the panel's decision-making process.

44. The Council notes that even if the existence of a general presumption was put in question, the serious risk for the decision-making process leading to the appointment of members of the EU judicature results from a number of circumstances.

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18 Judgment in *Commission v. Bavarian Lager*, C-28/08 P, ECLI:EU:C:2010:378, paragraph 56; Judgment in *Commission v. Éditions Odile Jacob SAS*, C-404/10 P, ECLI:EU:C:2012:393, paragraphs 109-110; Judgment in *Commission v. Agrofert Holding a.s.*, C-477/10 P, ECLI:EU:C:2012:394, paragraphs 51-52; Judgment in *Commission v. EnBW Energie Baden-Württemberg AG*, C-365/12 P, ECLI:EU:C:2014:112, paragraphs 83-87.

19 See in particular judgment in *Alexandrou. v Commission*, T-515/14 P and T-516/14 P, ECLI:EU:T:2015:844, paragraph 88 and following.

45. To start with, a number of elements and considerations mentioned above in relation to the prejudice to the candidates' reputation have broader systemic implications for the correct functioning of the selection procedure for Judges and Advocates-General. As the GSC has pointed out in its reply to the initial application, disclosure of an opinion, be it favourable or unfavourable, could dissuade future qualified candidates from applying, for fear of any possible negative impact that the panel's opinions could have on their reputation. This "chilling effect" is linked to the fact that, as mentioned above, potential candidates are usually individuals of particularly high seniority and visibility at national level, who could be deterred from participating in the selection procedure if their reputation could be at risk. Contrary to the allegations of the applicant, the Council considers that it has sufficiently demonstrated the existence of a reasonably foreseeable and not purely hypothetical risk of the interest protected to be harmed.

46. In that regard, the applicant maintains that publication of the panel's opinions would rather mitigate the reputational damage, which today is multiplied by the "*speculation, chattering and manipulation*" caused by the current absolute confidentiality policy. The Council considers that this statement merely reflects an opinion and is not substantiated by factual evidence.

47. Furthermore, disclosure of the requested opinions would affect the working methods of the panel. In particular, as the GSC has already pointed out in its reply to the initial application, the panel could become more restrained and more guarded when drafting its opinions. Such a development would however be unfortunate firstly because it would greatly reduce the usefulness of the panel's opinions, with the effect of rendering more difficult the work of the Intergovernmental Conference which is called to appoint Judges and Advocates-General.

48. The Council would also like to point out that, as mentioned above, the panel provides its opinions to an Intergovernmental Conference composed of the Representatives of the Governments of the Member States that appoints the Judges and Advocates-General by common accord. Disclosure of the opinions of the panel would inevitably attract the attention of the public and possibly of the media towards the assessment of the candidates. This in turn could lead to a politicisation of the issue and the adoption of politically postured positions, thereby significantly reducing Member States' margin for manoeuvre in the deliberations relevant for the adoption of a decision by common accord. In the framework of a political discussion on the appointments, the heretofore much-respected opinion of the panel could be called into question in light of considerations of a political nature, which would ultimately affect the quality of the selection of Judges and Advocates-General.

49. For all the reasons stated above, the Council considers that disclosure of the requested opinions would undermine the decision-making process leading to the appointment of Judges and Advocates-General and therefore would jeopardize the attainment of the objectives of Article 4(3) of Regulation (EC) No 1049/2001.

3. The protection of the candidates' commercial interests

50. The Council further considers that the disclosure of the requested opinions could undermine the protection of the candidates' commercial interests (Article 4(2) first indent of Regulation (EC) No 1049/2001), in the event that the candidates were to carry out paid work as lawyers or legal advisers.

51. While an opinion of the panel concerns the suitability of a candidate for a specific position, the fact remains that the evaluation carried out by the panel takes into account the file submitted by the candidate, their academic record, their professional experience and their performance at the hearing. All this information would be relevant for any other position, in either the public or the private sector, for which the candidate might later be considered, since it shows the capabilities of the candidate as a legal professional. As explained in point 34 above, in the case of candidates for a first term of office, at the hearing the panel assesses their "*analytical abilities and capacity for reasoning with regard to the conditions and mechanisms for applying the law, particularly as regards the application of EU law*". Therefore, the disclosure of any remarks identifying candidates' weaknesses in relation to their analytical abilities and capacity for reasoning with regard to the conditions and mechanisms for applying the law, in particular in the case of unfavourable opinions, could have a negative impact on the candidate's chances of succeeding in other selection procedures.

52. Furthermore, the argument raised by the applicant, according to which disclosure of the requested documents could not undermine the protection of the candidates' commercial interests, in so far as the contents of the opinions "*have become the object of unprecedented media coverage and fuelled speculation that has damaged – not protected – the alleged candidates' commercial interests*", must be refused. As already pointed out in point 36 above, the Court has already found that the fact that a document had already been leaked, cannot, in itself, have any bearing on the possibility for the institution to rely on one of the exceptions provided for under Regulation (EC) No 1049/2001.

53. It results from the above that disclosure of the requested documents should be refused also in relation to the exception protecting the candidates' commercial interests under Article 4(2) first indent of Regulation (EC) No 1049/2001.

4. The overriding public interest in disclosure

54. When an institution determines that one of the interests protected by the exceptions provided for in Article 4(2) and (3) of Regulation (EC) No 1049/2001 would be undermined by disclosure, it must assess whether there is an overriding public interest that would nonetheless justify making the requested documents available.

55. In this case, the applicant's position is that the lack of transparency, particularly regarding the unfavourable opinions of the panel, creates an environment of speculation and manipulation that damages candidates' reputations. The applicant argues that the current practice of keeping these opinions confidential undermines the legitimacy of the selection process and promotes public distrust.

56. The Council considers that as regards the existence of an overriding public interest in disclosure, on balance, the principle of transparency which underpins Regulation (EC) No 1049/2001 would not, in this case, prevail over the abovementioned interests protected under the exceptions laid down in Article 4(2) and (3) of Regulation (EC) No 1049/2001 in such a way as to justify disclosure of the documents.

57. The Council acknowledges that transparency, and more specifically legislative transparency, plays a critical role in the functioning of the EU democratic system, as enshrined in the Treaties, secondary legislation and relevant case-law.

58. However, the Council deems here useful to refer to the considerations that it has developed in points 28-31 of this reply and to underline once more that in a democratic society, transparency and public participation do not have the same role in relation to legislative activity and in respect of the appointment and the role of the judiciary.

59. Magistrates are subject only to the law. Their position cannot be compared to that of politicians or citizens' representatives. As a consequence, the procedure for their appointment needs to strike a balance between the need to select the candidates with the best legal expertise, the greatest professional experience and guarantees of integrity and independence, and the principle of transparency.

60. The Council is of the view, in this regard, that such a balance is satisfied by the significant level of transparency that is already ensured through the panel's periodic publication of detailed activity reports, which as explained above provide information about its working methods, its criteria for assessing candidates and its overall yearly activity.

61. When it comes to the publication of individual opinions on the suitability of candidates for the post of Judge or Advocate-General, the Council believes that, on balance, the public interest in having access to those opinions does not override the interests in the protection of the decision-making process and the candidates' commercial interests.

62. The Council would therefore like to conclude that there is no overriding public interest that would justify fully disclosing the requested documents.

5. Reference to European Ombudsman decision in case 1955/2017/THH

63. As regards the handling of requests for access submitted under Regulation (EC) No 1049/2001 by a member of the public, the Council considers that the legal framework established by Council Decision 2010/124/EU has to be duly taken into account when interpreting the relevant provisions of Regulation (EC) No 1049/2001 and assessing whether access to the panel's opinions can be given. As already referred to in its initial reply, the Council would also like to recall that in her decision in case 1955/2017/THH on the Council of the European Union's refusal to grant public access to opinions evaluating the merits of candidates for appointment to the Court of Justice and the General Court of the European Union, the European Ombudsman had found that '*the overriding public interest in this case lies in protecting the panel's decision-making process*' and that '*this constitutes a greater public interest than that of the public knowing further details of the panel's opinions*', and had concluded that '*the refusal of the Council to provide full public access to the opinions of the panel on judicial appointments was justified*'[20].

[20] Decision in case 1955/2017/THH on the Council of the European Union's refusal to grant public access to opinions evaluating the merits of candidates for appointment to the Court of Justice and the General Court of the European Union, paragraphs 54 and 56.

64. In its confirmatory application, the applicant alleges that the refusal by the Council of access to the requested documents is not supported by the European Ombudsman decision in case 1955/2017/THH, for the reasons recalled in point 6 C above. The Council considers that the arguments of the applicant in this regard must be rejected. In the context of that decision, the European Ombudsman has carefully reviewed a range of specific opinions drawn up by the panel, both favorable and unfavorable[21]. The fact that the case concerned a high number of opinions, whereas the case at hand concerns only two, appears completely irrelevant. The Ombudsman conducted a concrete assessment of the content of specific opinions and considered that refusal of access by the Council was justified, for the reasons set out above. In addition, the relevance of the Ombudsman decision for the case at hand cannot be diminished, as the applicant alleges, by the fact that the requested documents "*have become the object of intense public scrutiny*".

65. Moreover, as argued by the applicant, it is true that the European Ombudsman welcomed, in that decision, *"the public interest served in submitting the complaint as it provided an opportunity for some independent scrutiny of a matter of significant importance to EU citizens".* However, after carrying out such scrutiny, it still concluded that the refusal of granting access by the Council did not represent maladministration.

E. PARTIAL ACCESS PURSUANT TO ARTICLE 4(6) OF REGULATION (EC) NO 1049/2001

66. The Council has carefully reconsidered whether further partial access could be granted to the requested opinions. However, it has come to the conclusion that no further access can be granted beyond what has already been provided, as the remaining parts of the documents fall within one or more of the exceptions outlined above.

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[21] See point 23 of the European Ombudsman Decision in case 1955/2017/THH.